

GHANA ARBITRATION AND COMMERCIAL LAW REVIEW

Building a Career in Arbitration and Mediation:
Practical Questions and Answers for Trainees



CENTER FOR INTERNATIONAL
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Lex Mundus
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International Law Firm



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Building a Career in Arbitration and Mediation: Practical Questions and Answers for Trainees

1. Independence and Impartiality

The most effective entry point is structured training (e.g. ACIMArb, MCIMArb or FCIMArb), followed by participation in mock arbitrations, moot competitions, and tribunal simulations, which provide demonstrable practical competence.

2. How can a trainee obtain first-hand arbitral experience?

By acting as:



Tribunal secretary or research assistant



Intern with arbitral institutions



Participant in mock arbitrations



Junior to senior arbitration counsel

3. Is it possible to sit as an arbitrator early in one's career?

Yes, in low-value disputes, ad hoc matters, or institutional panels where junior arbitrators are appointed, particularly through ADR centres and community arbitration schemes.

4. What skills are most critical for arbitration practice?

 Legal drafting (pleadings and awards)

 Case management

 Evidence analysis

 Oral advocacy

 Procedural strategy

5. How does one transition from training to paid arbitration work?

By converting training exposure into visibility and credibility, including publishing articles, participating in panels, and networking within arbitration communities.



6. What roles generate income in arbitration practice?



Arbitrator fees



Counsel fees



Tribunal secretary fees



Expert advisory roles



Training and teaching engagements

7. How are arbitrators typically remunerated?

Through:



Hourly rates



Daily hearing fees



Lump-sum fees



Institutional fee schedules

8. What is the fastest way to earn from arbitration?

Acting as counsel in arbitration proceedings or providing legal advisory services, as arbitrator appointments typically require reputation and experience.

9. How can trainees access arbitration networks?

By joining:

 Professional bodies (e.g., CIArb, CIMA)

 Arbitration associations

 Mooting and ADR forums

 Conferences and workshops



10. Are conferences worth attending for career growth?

Yes. Conferences provide direct access to arbitrators, institutions, and potential appointing authorities, which is essential for visibility and appointments

11. What is the role of arbitral institutions in career development?

They provide:



Training and certification



Panel appointments



Case administration exposure



Internship and mentorship opportunities



12 How can a trainee build a profile as an arbitrator?

By:

 Publishing arbitration-related articles

 Speaking at events

 Completing advanced certifications

 Accepting small arbitral appointments

13. What is the importance of mentorship in arbitration?

Mentorship accelerates access to cases, referrals, and procedural insight, particularly through association with experienced arbitrators or counsel.



14. Can mediation provide faster income opportunities than arbitration?

Yes. Mediation is often less formal and more accessible, allowing quicker entry into fee-earning roles, especially in commercial and community disputes.

15. How does one secure appointments as a mediator?

Through:



Accreditation and certification



Listing on institutional panels



Building a reputation in negotiation and dispute resolution



16. What sectors offer the most arbitration opportunities?

Through:



Construction



Energy and infrastructure



Maritime



Finance and commercial contracts

17. How important is specialization in arbitration practice?

Highly important. Specialization (e.g., construction arbitration, investment arbitration) enhances marketability and appointment prospects.



18. What role does drafting play in arbitration careers?

Drafting is central. Competence in pleadings, procedural orders, and awards directly influences credibility and selection for roles.

19. How can trainees leverage local opportunities in emerging markets?

By positioning themselves within local arbitration centres, domestic disputes, and regional frameworks, where competition is lower and growth potential is high.



20. How important is specialization in arbitration practice?

A structured progression:



Training and certification



Practical exposure (moots, internships)



Visibility (publications, speaking)



Counsel work



Arbitrator appointments



Specialization and internationalisation



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